

The Mid-Day Meal Rules, 2015

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Union of India - Act

The Mid-Day Meal Rules, 2015

UNION OF INDIA

India

The Mid-Day Meal Rules, 2015

Rule THE-MID-DAY-MEAL-RULES-2015 of 2015

Published on 30 September 2015

Commenced on 30 September 2015

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The Mid-Day Meal Rules, 2015

Published vide Notification No. G.S.R. 743(E), dated 30th September, 2015

Last Updated 22nd April, 2019

Ministry of Human Resource Development

(Department of School Education and Literacy)

G.S.R. 743(E). - In exercise of the powers conferred by sub-section (1) read with clause (b) of sub-section (2) of section 39 of the National Food Security Act, 2013 (

20 of 2013

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Mid-Day Meal Rules, 2015.

(2)

They shall come into force on the date of their publication in the official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the National Food Security Act, 2013 (

20 of 2013

);

(b)

"foodgrains" means rice, wheat, coarse grains or any combination thereof conforming to such quality norms as may be determined, by order, by the Central Government from time to time;

(c)

"food security allowance" means the food grain and money to be paid by the concerned State Government to the entitled person under section 8 of the Act;

(d)

"meal" means hot cooked meal;

(e)

"School" includes any school run by Local Bodies, Government or aided by the Government including madrasas and maqtabas supported under Sarva Shiksha Abhiyan;

(f)

"section" means the section of the Act; and

(g)

words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Entitlement for nutritional meal.

- Every child within the age group of six to fourteen years studying in classes I to VIII who enrol and attend the school, shall be provided meal having nutritional standards as specified in Schedule II of the Act, free of charge every day except on school holidays.

4.

Place of serving meal.

- The meal shall be served to children at school only.

5.

Preparation of meals and maintenance of standards and quality.

(1)

The meal shall be prepared in accordance with the Mid Day Meal guidelines issued by the Central Government from time to time and in accordance with the provisions of Schedule II of the Act.

(2)

[Every school shall have the facility for cooking meal in hygienic manner. Schools in urban area may use the facility of centralised kitchens for cooking meals wherever required in accordance with the guidelines issued by the Central Government and the meal shall be served to the children at respective school only]

[Substituted by Notification No. G.S.R. 310(E), dated 16.4.2019 (w.e.f. 30.9.2015).]

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6.

State Steering-cum-Monitoring Committee for Mid-Day Meal Scheme.

- The State Steering-cum-Monitoring Committee (SSMC) shall oversee the implementation of the scheme with a view to ensure implementation of the Act including establishment of a mechanism for maintenance of nutritional standards and quality of meals.

7.
Role of School Management Committee (SMC) for monitoring Mid-day meals scheme.

(1)
The School Management Committee mandated under Right to Free and Compulsory Education Act, 2009 shall also monitor implementation of the Mid-day meal Scheme and shall oversee quality of meals provided to the children, cleanliness of the place of cooking and maintenance of hygiene in implementation of mid day meal scheme.

(2)
The Headmaster or Headmistress of the school shall be empowered to utilise any fund available in school for the purpose of continuation of Mid Day Meal Scheme in the school in case of temporary unavailability of food grains, cooking cost etc. in the school. The utilised fund shall be reimbursed to the school account immediately after receipt of mid day meal funds.

8.
Testing of Meals by accredited Laboratories.

(1)
Hot cooked meal provided to children shall be evaluated and certified by the Government Food Research Laboratory or any laboratory accredited or recognized by law, so as to ensure that the meal meets with the nutritional standards and quality specified in Schedule II to the Act. The Food and Drugs Administration Department of the State may collect samples to ensure the nutritive value and quality of the meals.

(2)
The Department referred to in sub-rule (1) shall collect the samples at least once in a month from randomly selected schools or centralised kitchens and send such samples for examination to the laboratories referred to in sub-rule (1).

9.
Food Security Allowance.

(1)
If the Mid-Day Meal is not provided in school on any school day due to nonavailability of food grains, cooking cost, fuel or absence of cook-cum-helper or any other reason, the State Government shall pay food security allowance as defined in clause (c) of rule 2 to every child referred to in rule 3 by 15th of the succeeding month in the manner provided herein below:-

(a)
Quantity of Food grains as per entitlement of the child; and

(b)
Cooking cost prevailing in the State.

(2)
In case of non-supply of meal by the Centralised Kitchen, the Food Security Allowance shall be realised from the Centralised Kitchen as per sub-rule (1):

Provided that in case a child has not taken food on offer for whatever reasons, no claim of food security allowance shall lie with the State Government or Centralised Kitchens:

Provided further that no claim shall lie with State Government or Centralised Kitchen for reasons of quality of food grains and meal:

(3)
The State Government shall take action to fix responsibility on the person or agency in accordance with the procedure laid down, if mid day meal is not provided in school on school days continuously for three days or at least for five days in a month.

(4)
Wherever an agency of Central Government is involved, the State Government shall take up the matter with Central Government which shall resolve the matter within a month.

10.
Saving.

- Nothing in these rules shall affect the guidelines issued in this behalf or likely to be issued by the Central Government regarding the activities relating to Mid Day Meal Scheme.

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